

WhatsApp Business Data Transfer Addendum

Last updated: 16 February 2024

This WhatsApp Business Data Transfer Addendum (“Data Transfer Addendum”) applies to the extent that WhatsApp Ireland Limited (“WhatsApp Ireland”) processes European Data as your Processor under the [Business Terms](#) and transfers of such data are made to WhatsApp LLC and Meta Platforms Inc.

1. You acknowledge and agree that, to provide the Business Services pursuant to the Business Terms, WhatsApp Ireland transfers European Data to WhatsApp LLC and Meta Platforms Inc. and onward transfers of European Data may be made to other [WhatsApp Subprocessors](#).
2. WhatsApp Ireland relies on the EU-U.S. Data Privacy Framework for transfers of European data to WhatsApp LLC in the US as set out in [WhatsApp LLC’s Data Privacy Framework Disclosure](#) and to Meta Platforms, Inc. as set out in [Meta Platforms Inc.’s Data Privacy Framework Disclosure](#). WhatsApp Ireland reserves the right to rely on alternative transfer mechanism recognized by the GDPR and other applicable data protection laws in the EEA and Switzerland, such as the Processor to Processor SCCs or other adequacy decisions. Onward transfers to WhatsApp sub-processors are made in accordance with the requirements of the applicable transfer mechanism, and pursuant to the general authorisation under the Data Processing Terms.
3. In order to facilitate an efficient and coordinated service, you agree that all communication with WhatsApp LLC, Meta Platforms Inc. or any other WhatsApp Subprocessor, to the extent possible, will be coordinated and directed through WhatsApp Ireland.

4. This Data Transfer Addendum takes priority over the Business Terms and the Data Processing Terms to the extent of a conflict or inconsistency.

5. In this Data Transfer Addendum:

- a. **“SCCs”** means the European Commission's Standard Contractual Clauses for the transfer of personal data to third countries pursuant to Regulation (EU) 2016/679 as set out in annex to Commission Decision 2021/914 which, as of the last updated date, are available at the link https://eur-lex.europa.eu/eli/dec_impl/2021/914/oj, and which are incorporated herein by reference.
- b. **“EEA”** means European Economic Area.
- c. **“European Data”** means Personal Data which is Processed by WhatsApp Ireland as your Processor pursuant to the Business Terms, to the extent that the GDPR or other data protection laws in the EEA or Switzerland apply to your Processing of such data.
- d. **“Processor to Processor SCCs”** means, as applicable to the transfer: (a) module 3 (processor to processor) of the standard contractual clauses or (b) such other (processor to processor) standard contractual clauses for the transfer of personal data to third countries that are recognised under the applicable data protection laws in the EEA or Switzerland (in either case with any optional clauses as chosen by WhatsApp Ireland).
- e. **“WhatsApp Subprocessor”** means a processor that is engaged by WhatsApp LLC or Meta Platforms Inc., under the Processor to Processor SCCs to Process European Data.

Any other capitalised terms have the meaning given to them in the Business Terms or the Data Processing Terms.